

Shree Rung Pandey v. Uttar Pradesh Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 July 2022 · Writ-C No. 20173 of 2022 · **Writ disposed; 6.8 objection directed with stay of coercive action**

HEADNOTE

Writ seeking quashing of a recovery citation and a correct electricity bill was disposed without examining merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the licensee was to decide it within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

The petitioner, a consumer, approached the Allahabad High Court to quash a recovery citation dated 24 June 2022 and for a mandamus directing the distribution licensee to decide representations dated 1 December 2019, 20 January 2020 and 1 September 2020 and to issue a correct electricity bill. Counsel for the Power Distribution Corporation stated that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to demand

HOLDING

Without expressing any opinion on merits, the writ was disposed with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the concerned licensee officer within four weeks; if so submitted, the objection is to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court relegated the consumer to a para 6.8 objection against the recovery demand instead of examining the citation or the bill on the writ. ¶ 1

alternative-remedy-statutory-appeal-6.8 Counsel's concession that an objection would be decided in a time-bound manner was accepted as the statutory 6.8 path, with a short stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 24.6.2022 AND THE CLAIM TO A CORRECT ELECTRICITY BILL

The Court expressly declined to opine on merits and left the dispute to a para 6.8 objection. ¶ 1